WILFRED MBOMA
versus
SAN HE ZIMBABWE (PRIVATE) LIMITED
and
THE MINING COMMISSIONER FOR THE PROVINCE OF MASHONALAND CENTRAL
and
THE MINISTER OF MINES AND MINING DEVELOPMENT
and
THE COMMISSIONER GENERAL OF THE ZIMBABWE REPUBLIC POLICE

HIGH COURT OF ZIMBWE
MAMBARA J
HARARE 21 October and 14 January 2026 and 2 February 2026

Urgent Chamber Application

T.M. Mutema for the applicant
Z. Bofu, for the first respondent
A. Chakanyuka, for the second, third, and fourth respondents

MAMBARA J:

[1] This is an urgent chamber application filed by Mr. Wilfred Mboma ("the Applicant") on 20 October 2025 under Case No. HCH5261/25. The Applicant sought interim relief to protect his asserted mining rights in a chrome-rich area of Guruve District, which he claimed to hold under a Special Grant (No. 10113). It emerged, however, that at the time of filing the application, the Applicant had not yet been issued with any Special Grant certificate or other formal title for that mining location.

[2] In view of the dispute regarding the Applicant's title, this Court directed that the matter be referred to the Ministry of Mines and Mining Development for clarification. Specifically, a report was sought from the Ministry to ascertain the status and issuance date of Special Grant No. 10113. This step was necessary because no copy of an actual Special Grant certificate had been produced with the Applicant's papers, raising doubt as to whether such mining title was in existence at the relevant time.

[3] The Ministry of Mines complied and provided a report in these proceedings (hereinafter "the Mboma Report (final draft)"). The Mboma Report's pertinent findings confirm that while the Applicant had applied for a Special Grant and completed the necessary formalities, the Special Grant certificate No. 10113 was only issued to the Applicant on 23 October 2025. In other words, as of 20 October 2025 – the date on which the Applicant approached this Court – he did not yet hold an issued Special Grant certificate. The report thus makes it clear that the Applicant had no legally enforceable mining title in hand on the day he filed this urgent application.

[4] The implications of the Mboma Report are decisive. It is trite that an applicant seeking an interdict or similar relief must establish a clear legal right to the subject matter. In this case, the Applicant's purported right was predicated on Special Grant No. 10113. Yet, as confirmed above, no such grant had been formally conferred by the time proceedings were launched. An application for a mining grant, or mere allocation of a reference number, does not itself confer rights – it only signifies an intention and a pending administrative process. Until the Special Grant was actually issued on 23 October 2025, the Applicant's interest remained inchoate and had not crystallized into an enforceable right recognized at law.

[5] The Court therefore finds that the Applicant lacked the requisite locus standi and a clear right at the time of instituting these proceedings. The urgent application was premature, being founded on a mining title that did not exist on the filing date. In the premises, the matter cannot succeed. Given this conclusion, it is unnecessary to consider any other arguments or the merits beyond the issue of title.

[6] Disposition:

In light of the foregoing, the application is dismissed.

The Applicant shall bear the costs of this application, such costs to be on the ordinary scale.

MAMBARAJ……

Mutema Attorneys, legal practitioners for the applicant
Tabana and Marwa, legal practitioners for the 1st respondent
Civil Division, legal practitioners for the 2nd, 3rd and 4th respondents